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JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.22253 of 2025

Mazhar Hayat
Versus
Government of the Punjab / Appellate Authority through
Secretary Regulations (S&GAD), Govt. of the Punjab, Lahore
& others

J U D G M E N T

Date of hearing:	13.01.2026.
Petitioner:	In person.
Respondents by:	Mr. Muhammad Saad Bin Ghazi, Assistant Advocate General, along with Liaquat Ali Channar, Law Officer and Hafiz Fayyaz Ahmad, Deputy Director (Legal). Mr. Abdul Razzaq, Advocate.

MUHAMMAD SAJID MEHMOOD SETHI, J.- Through instant petition, petitioner, Mazhar Hayat, has called in question the order dated 13.03.2025, passed by respondent No.5 / Secretary, School Education Department, Govt. of the Punjab, whereby pursuant to the order / direction dated 28.02.2023, passed by this Court in the previous round of litigation i.e. **W.P. No.80112 of 2022**, petitioner's appeal against order dated 30.03.2022 and show cause-cum-personal hearing notice dated 01.12.2022 proposing imposition of major penalty of "removal from service" in terms of Section 4(1)(b)(v) of the Punjab Employees Efficiency, Discipline and Accountability ("**PEEDA**") Act, 2006, was rejected.

2. Petitioner, appearing in person, with prior permission of the Court, submits that the disciplinary proceedings are vitiated at their very inception for want of lawful authority, as the charges framed were vague and non-specific, the inquiry was conducted in violation of mandatory procedural safeguards including denial of relevant documents and effective cross-examination, and the process was tainted by pre-determination, collectively offending

the guarantees of due process and fair trial. He argues that the impugned order suffers from patent non-application of mind, as despite recording that the charges were general and the proposed penalty was harsh, it mechanically maintained the punishment of removal from service without addressing the jurisdictional objections raised, rendering the order non-speaking, arbitrary, and legally unsustainable, while the proposed punishment is grossly disproportionate to the alleged misconduct and cannot be sustained in law. In support, he has referred to Bashir Ahmad and others v. The Director General, Lahore Development Authority, Lahore and others (2020 PLC 150) and Chief Secretary, Government of Punjab, Lahore v. Muhammad Ali Saqib (2020 SCMR 1245).

3. Conversely, learned Law Officer defends the impugned order by contending that the constitutional petition is not maintainable as the petitioner's service is governed by non-statutory service regulations framed under Section 26 of the Punjab Curriculum and Textbook Board Act, 2015, duly approved and notified, and protected by the saving clause of the PECTAA Act, 2025; therefore, in view of settled law, service disputes arising therefrom do not warrant constitutional intervention, particularly when the petitioner lacks clean hands, has concealed material facts, and is estopped by his own conduct. He adds that the penalty of removal from service was imposed strictly in accordance with the PEEDA Act, 2006 after full compliance with due process, as the petitioner was afforded repeated opportunities of hearing but deliberately avoided inquiry proceedings, leading to an *ex parte* inquiry wherein multiple charges were proved; the findings were endorsed by the HR Committee, approved by the Board of Governors after personal hearing, and subsequently upheld in statutory appeal by the competent governmental forums through a reasoned order dated 13.03.2025, leaving no scope for interference. In support, he relied upon Brig. (R.) Sakhi Marjan, CEO, PESCO,

Peshawar v. Managing Director PEPCO, Lahore and others (2009 SCMR 708).

4. Arguments heard. Available record perused.

5. As regards respondents' objection regarding maintainability of the instant petition, record reflects that the Service Regulations applicable to the employees of the Punjab Textbook Board / Punjab Curriculum & Textbook Board / Punjab Education, Curriculum, Training and Assessment Authority were framed under delegated statutory authority, approved by the competent Government and duly notified in the Official Gazette. Once so notified, such regulations acquire statutory force and cannot be treated as mere administrative instructions. This aspect had already attained finality in the earlier round of litigation when this Court, vide order dated 28.02.2023, transmitted the petitioner's writ petition to be treated as a statutory appeal. The said order was neither challenged nor set aside and, therefore, the respondents are estopped from taking a contradictory position at this stage. Moreover, the impugned order has been passed by the Government while exercising statutory appellate jurisdiction; hence, the same is clearly amenable to constitutional review under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973.

6. Even otherwise, petitioner was proceeded against under the PEEDA Act, 2006 and violation of its provisions has been alleged, hence, instant constitutional petition is maintainable in view of the dictum of law laid down in Bashir Ahmad and others v. The Director General, Lahore Development Authority, Lahore and others (2020 PLC 150). The objection raised by the respondents regarding maintainability of the instant constitutional petition is devoid of substance. It is well settled that where an employee is proceeded against under a statute or pursuant to statutory intervention in disciplinary matters, and a violation of such statute is alleged, the remedy lies before the High Court under Article 199 of the Constitution. The Honourable Supreme Court in Pakistan

Defence Officers Housing Authority and others v. Lt.-Col. Syed Jawaaid Ahmed (2013 SCMR 1707) has categorically held that even where service rules or regulations of statutory organizations are non-statutory, once there is a legislative intervention governing disciplinary proceedings, such as the Removal from Service (Special Powers) Ordinance, 2000, the affected employee must be dealt with under the said statute and the writ petition is competent. The same principle squarely applies to proceedings initiated under the Punjab Employees Efficiency, Discipline and Accountability Act, 2006, which constitutes a statutory intervention and, by virtue of its overriding effect, supersedes any non-statutory service rules or administrative manuals. Consistently, the superior Courts have held that irrespective of the non-statutory nature of underlying service rules, once action is taken under the PEEDA Act, 2006, a statute having the force of law, the High Court has jurisdiction to examine the legality, propriety, and lawfulness of such action. It is also settled that in determining maintainability, the Courts apply the “function test” to ascertain whether the authority concerned is a public body performing statutory or public functions, which undoubtedly brings such authority within the ambit of Article 199 of the Constitution. Reliance in this regard is rightly placed upon , Haroon-ur-Rashid v. Lahore Development Authority and others (2016 SCMR 931), Bashir Ahmad and others v. Director General, Lahore Development Authority (2020 SCMR 471) and Bashir Ali Shahzad v. Bank of Punjab through President and 2 others [2023 PLC (C.S.) 1059], wherein it has been consistently held that violation of statutory provisions governing service matters is directly justiciable in constitutional jurisdiction. Consequently, this Court holds that the instant writ petition is maintainable.

7. Turning to the merits of the case, it is evident from the record that as many as six charges were levelled against petitioner, out of which allegedly five charges stood proved in the inquiry proceedings, charge No.(iii) regarding use of indecent language

against the seniors / colleagues in the representations remained unproved. Whereas, in subsequent personal hearing, the Hearing Officer observed that as per department, the first charge was not proved, and the second charge being inter-linked with the first charge became infructuous. The Hearing Officer further observed that the other three charges were of general nature, thus, the award of major penalty did not commensurate with the quantum of alleged / proved charges and was harsh. The remaining three allegations / charges are: instead of submitting specific reply of the explanation, discussion of irrelevant issues levelling different allegations against senior officer of the PTCB; failure to mend his behaviour in spite of repeated explanations and penalty of censure; and non-submission of PERs since the date of regularization. Such allegations, couched in broad and subjective terms without material particulars, dates, specific acts, or demonstrable prejudice to the department, fall short of the legal threshold of “misconduct” as contemplated under the PEEDA Act, 2006. It is settled law that vague allegations deprive a delinquent employee of an effective opportunity to defend himself and offend the principles of natural justice as well as the guarantee of fair trial under Article 10A of the Constitution. The situation is rendered more untenable where the appellate authority’s own hearing officer records that the charges are general, frivolous, or disproportionate to the proposed punishment, yet the authority proceeds to uphold the harshest penalty through a non-speaking order. This not only reflects non-application of mind but also amounts to an abdication of statutory responsibility, as the disciplinary and appellate authorities failed to independently assess whether the proved allegations, even if assumed to be correct, legally constituted misconduct of such severity as to justify removal from service. Consequently, the continuation of the impugned penalty in the face of these explicit observations underscores the arbitrariness of the proceedings and reinforces the conclusion that the disciplinary action is vitiated by

vagueness, lack of material particulars, and disproportionality, rendering it unsustainable in law.

8. Even otherwise, the penalty imposed is grossly disproportionate to the misconduct, if any, established against the petitioner. The law is well settled that punishment must be commensurate with the gravity of the offence proved. In service matters, the penalty is always imposed in the light of nature of charge and in the present case the charge against the petitioner was not so grave to propose such a harsh penalty of removal from service. Reliance is placed upon Muhammad Ali S. Bukhari v. Federation of Pakistan through Establishment Secretary, Islamabad and 2 others (2008 SCMR 214), Zahid Hussain Makhdoom v. The Secretary / Chairman, Railway Board, Ministry of Railways, Government of Pakistan, Islamabad and others (2018 SCMR 2077) and Secretary, Government of Punjab and others v. Khalid Hussain Hamdani and 2 others (2013 SCMR 817).

9. Undeniably, the petitioner was not associated with the inquiry proceedings, thus, he was denied essential procedural safeguards. He was not supplied with all the relevant documents despite request, was deprived of an effective right of cross-examination, and the inquiry was conducted in a manner which does not inspire confidence. Where a major penalty is contemplated, strict compliance with procedural requirements and adherence to the principles of natural justice is mandatory; any deviation therefrom vitiates the entire proceedings. Reference can be made to Syed Mir Muhammad v. N.W.F.P. Government through Chief Secretary (PLD 1981 Supreme Court 176), Khuda-i-Nazar v. The Curator and another (2000 SCMR 1743) and Aamir Akbar v. Additional Superintendent of Police, Bahawalpur and others [2025 PLC (C.S.) 675].

10. As per well-settled principles of law, every citizen is entitled to due process, right to be treated fairly at all times, right to

procedural fairness and right to procedural propriety. Petitioner, being a citizen of the Islamic Republic of Pakistan, had the right to a fair procedure, which was constitutionally guaranteed. In this regard, reliance is placed on Naubahar Ali v. Vice-Chancellor and others (2010 PLC (C.S.) 783), Muhammad Umar v. D.G. Excise and Taxation and others [2011 PLC (C.S.) 384] and Pakistan Defence Officers Housing Authority v. Mrs. Itrat Sajjad Khan and others (2017 SCMR 2010).

11. The impugned order also does not qualify as a speaking order. It neither meaningfully addresses the petitioner's preliminary objections nor reconciles its own observations regarding the frivolous nature of certain charges and the harshness of the penalty with the ultimate conclusion to maintain the extreme punishment of removal from service. Such an order reflects mechanical affirmation rather than judicious exercise of statutory discretion and, therefore, cannot be sustained. For facility of reference, relevant portion of the recommendations of the Secretary Regulations is reproduced hereunder, for facility of reference:-

"The undersigned is of the view that Mr. Mazhar Hayat, was charged with five offences under PEEDA Act 2006. The first two charges are inter-connected and as per department, the first charge was not proved. Therefore, in my opinion, the 2nd charge also becomes infructuous. The other three charges are for "Misconduct" which is of general nature. Mr. Mazhar Hayat was awarded penalty of "Removal from Service" by the PCTB Board after fulfilling all the codal formalities, which does not commensurate with the quantum of alleged / proved charges and is a bit harsh. The appellate authority against the decision of the Board is Government / Cabinet. However, Mr. Mazhar Hayat did not file any appeal to the Government / Cabinet and opted Writ Petition in the Lahore High Court, Lahore."

12. In view of the above discussion, this Court is persuaded to hold that the disciplinary proceedings against the petitioner are vitiated by want of lawful authority, violation of statutory provisions, denial of fair trial and non-application of mind. Consequently, the impugned appellate order dated 13.03.2025,

along with all consequential actions including the penalty of removal from service, cannot be allowed to stand.

13. Resultantly, this constitutional petition is **allowed** and the impugned orders dated 30.03.2022 and 13.03.2025 are set aside. The petitioner is restored to service forthwith with all consequential benefits in accordance with law.

(Muhammad Sajid Mehmood Sethi)

Judge

APPROVED FOR REPORTING

Judge

A.H.S.